

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served September 25, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION TO COMPEL DISCOVERY

This matter came on for consideration of: 1) Complainant Southern International Co., Ltd.’s Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production with accompanying appendix and attachments filed July 5, 2026 (Dkt. 41); 2) Respondent Daynamez Group of Companies LLC’s Response to Motion to Compel Including Consolidated, Signed and Verified Supplemental Answers to Complainant’s First Set of Interrogatories (Nos. 1–18), Amended Response to Request for Admission No. 12, and Supplemental Responses to Requests for Production accompanied by Exhibits 1-3 and Attachments 1-2 filed July 20, 2026¹ (Dkt. 45); and 3) Complainant Southern International, Co. Ltd.’s Limited Reply in Support of Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production filed August 4, 2026² (Dkt. 49).

For the reasons set forth below, Complainant’s motion is **GRANTED IN PART AND DENIED IN PART**. Respondent is directed to supplement its discovery responses as specified below.

I. Background.

On January 23, 2026, Complaint filed a second amended complaint and exhibits alleging Respondent violated 46 U.S.C. §§ 40901, 40902, and 41102(c). Complainant alleges these violations arose from Respondent’s operating as a non-vessel-operating common carrier without a license, failure to remit payment to relevant carriers for the shipment of 558 containers contracted by Complainant, repeated misappropriation of funds, and other acts or omission by Respondent. (Dkt. 18.)

¹ The response is deemed timely filed pursuant to the Order on Respondent’s Motion for Extension to Respond to Motion to Compel served July 16, 2026 (Dkt. 44.)

² Pursuant to the Order on Complainant’s Motion for Leave to Reply served August 4, 2026, Complainant was granted leave to file a reply to Respondent’s response to Complainant’s motion to compel. (Dkt. 48.)

On March 27, 2023, Respondent filed an answer and counterclaim. Respondent's answer denies the claims alleged in the amended complaint and asserts affirmative defenses. Respondent's counterclaim included two counts: Count I - indemnification and hold harmless, and violation of 46 U.S.C. § 41102(a) for not maintaining proper practices relating to the handling and receiving of cargo due to its failure to properly handle the cargo by letting it become abandoned; and Count II - breach of contract for failure to pay Daynamez and violation of 46 U.S.C. § 41102(a). (Dkt. 24.) Respondent's counterclaim was dismissed by the Order on Complainant's Motion to Dismiss Counterclaim served May 15, 2026. (Dkt. 39.)

II. Relevant Law

In Commission proceedings, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense – including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). For good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. *Id.*

On motion to compel discovery, the party from whom discovery is sought must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause. The presiding officer may specify conditions for the discovery. 46 C.F.R. § 502.141(e)(2)(I).

Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. 46 C.F.R. §§ 502.141(e)(2)(A) and (C). Interrogatories are limited to 50, including all discrete subparts. 46 C.F.R. § 502.145(a). Objections to interrogatories must be stated with specificity. 46 C.F.R. § 502.145(b)(4).

Interrogatories “requesting ‘every fact’ in support of a party's legal contentions are generally considered to be overly broad and unduly burdensome. A more reasonable request would be limited to the identification of the material or principle facts and documents supporting the legal contentions.” *Odyssey Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.*, Docket No. 02-08, 29 S.R.R. 1392, 1394 (ALJ Dec. 12, 2002) (citations omitted); *see also Hiskett v. Wal-Mart Stores, Inc.*, 180 F.R.D. 403, 404-405 (D. Kan. June 19, 1998). When responding to an interrogatory by identifying the records from which the answer may be derived or ascertained, “the records must be specified “in sufficient detail to permit the interrogating party to locate and identify, as readily as the party served, the records from which the answer may be obtained.” *Rainbow Pioneer # 44-18-04A, Haw.-Nev. Inv. Corp.*, 711 F.2d 902, 906 (9th Cir. June 13, 1983).

46 C.F.R. § 502.147(a)(4) requires a denial to fairly respond to the substance of the matter and requires any qualification to identify the portion admitted and qualify or deny the remainder. If an answer does not comply, the Presiding Officer may order an amended answer or deem the matter admitted. 46 C.F.R. § 502.147(a)(6).

A party may file a motion to compel discovery requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. 46 C.F.R. § 502.150(a)(2). Complainant's motion to compel satisfies these requirements.

III. Argument of the Parties

A. Complainant's Motion

Complainant states that it served its First Requests for Production, First Set of Interrogatories, and First Requests for Admission on Respondent on April 23, 2026. Respondent transmitted its responses on May 27, 2026. After reviewing the responsive materials, Complainant determined they were deficient, served a letter on Respondent detailing the deficiencies, and requested that the deficiencies be cured. Complainant asserts that thereafter the parties attempted to narrow and resolve the dispute in writing.

Respondent transmitted revised written discovery responses and a supplementary production on June 12, 2026, that Complainant asserts are deficient for the following reasons. Complainant states that Respondent's supplementary interrogatory responses are not verified and lack the signature of any individual or authorized representative. Complainant asserts that Respondent's document production states that it includes native Excel files and Excel production-index tracker, but lists only PDF attachments in the transmittal. Complainant asserts that Respondent provided a two-page transfer summary rather than the underlying bank-generated records and transaction-level information requested. Complainant asserts that Respondent's completeness statements are inconsistent with its own identification of responsive materials that were not produced. Complainant asserts that Respondent's production index does not include the complete Bates universe or correlate to its production response.

On July 20, 2026, Respondent served a second set of supplemental responses to each of the written discovery requests with its response to the pending motion.

Complainant seeks an order compelling Respondent to serve revised responses to: Interrogatory Nos. 3, 6, 10, 11, 12, 14, 15, and 18; Request for Admission No. 12; and Requests for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26, and 27. Complainant also seeks an order compelling Respondent to serve one consolidated set of answers to Interrogatory Nos. 1-18 that are signed and verified under oath or by declaration pursuant to 28 U.S.C. § 1746. Complainant requests that Respondent be ordered to take specific action to cure the stated deficiencies within 7 to 10 days of the order.

Complainant asserts that from June 2 through 9, 2026, it made a good faith effort to resolve the discovery dispute in accordance with 46 C.F.R. §§ 502.71(a) and 502.150(a)(2)(i),

and sent a final letter on June 12, 2026, outlining the deficiencies and requesting that they be cured. Complainant asserts that the identified deficiencies have not been cured despite its good faith effort to resolve the dispute.

Complainant argues that its request is proportional to the needs of the case. Complainant also asserts that it does not seek information in discovery related to the allegations in Respondent's counterclaim, which was dismissed on May 15, 2026, pursuant to the Order on Complainant's Motion to Dismiss Counterclaim. (Dkt. 39.)

B. Respondent's Response

Respondent's opposition includes consolidated, signed, and verified supplemental answers to Complainant's first set of interrogatories (Nos. 1-18), amended response to request for admission No. 12, and supplemental responses to request for production signed by Zia Kamali on July 19, 2026, under the penalty of perjury pursuant to 28 U.S.C. § 1746. Respondent argues that the substance of its June 12, 2026, supplemental response was sufficient, that the consolidated verified response cures the verification deficiency, and that the cross-reference table provided specifies the location of each response to interrogatory and request for production by reference to the page number of Respondent's June 12, 2026, response and Complainant's Appendix Ex. 6.

C. Complainant's Reply

Complainant admits that Respondent's opposition cured some of the deficiencies alleged in its motion but argues that other deficiencies have not been cured. Complainant states that Respondent served the requested consolidated verified response to Interrogatory Nos. 1-18 and Request for Admission No. 12, three Excel financial schedules, and clean copy of the Agency Agreement, and that these deficiencies have been cured. Otherwise, Complainant asserts Respondent's response does not resolve the other relief requested in its motion. Complainant describes the unresolved relief as follows:

It leaves its production statement unfinished; does not provide a finalized, request-by-request disposition stating, for each RFP still at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez's possession, custody, or control, or are subject to a specifically stated objection; does not produce or finally account for several native, source, and responsive communication records that it expressly identifies; does not provide a finalized, verified, and internally consistent account reconciling the sources Daynamez states were searched with the files actually transmitted and the unresolved alternatives retained at page 65; presents two differently defined outgoing-payment populations without reconciling their classifications or use; supplies aggregate financial compilations without the identified underlying bank-generated records or the transaction-to-shipment information requested; and gives an amended RFA response whose explanation leaves the scope of the denial uncertain. SIC does not ask the Presiding Officer to determine through this discovery motion that any document is fabricated, altered, inadmissible, or entitled to a particular evidentiary weight. The issue is whether

Daynamez has supplied final, complete, and reviewable discovery responses concerning records and contentions on which it affirmatively relies.

(Reply at 2.)

IV. Discussion

Complainant admits in its reply that Respondent's July 20 supplemental response cures many of the deficiencies asserted in its motion, but argues that it does not cure the absence of a finalized, request-by-request disposition stating, for each RFP remaining at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Respondent's possession, custody, or control, or are subject to a specifically stated objection. Nor does the submission establish that all responsive shipment-release, Net-Net, hold, release, and related email or WhatsApp communications were collected and produced. (Reply at 3.)

Complainant also argues that the July 20 supplemental discovery responses do not fully cure the request-specific deficiencies identified in its motion to compel with respect to Interrogatory Nos. 3, 6, 12, 14, and 15, and specifies why each is deficient. (Reply at 3-4.)

With respect to the document production, Complainant has not identified particular documents that have not been produced in responses to a specific request but rather asserts generally that the issue is whether Respondent has supplied final, complete, and reviewable discovery responses concerning records and contentions on which it affirmatively relies. (Reply at 2.) Complainant requests that Respondent be required to serve corrected written responses to RFP Nos. 1, 2, 4, 5, 6, 13, 14, 15-22, 26, and 27. (Reply at 9.)

With respect to RFA No. 12, Complainant argues that Respondent's qualified response neither admits nor denies the assertion in the request and requests that Respondent be compelled to serve a supplemental response. (Reply at 7.)

Upon review of Respondent's discovery responses as a whole, I find that they are sometimes incomplete, inconsistent, and ambiguous. Additionally, affirmative statements regarding the completeness and sufficiency of Respondent's search, to the limited extent they exist, have not been made under oath. Accordingly, it is appropriate to require Respondent to provide an affidavit detailing its efforts to produce responsive documents, the results of those efforts, and stating whether all responsive shipment-release, Net-Net, hold, release, and related email or WhatsApp communications were collected and produced in order to ensure that Respondent has fulfilled its discovery obligations. For the same reason, it is appropriate to require Respondent to serve final consolidated responses to interrogatories, requests for production, and requests for admission that are signed and verified.

Each of the unresolved discovery disputes are addressed below.

A. INTERROGATORIES³

Complainant seeks entry of an order compelling Respondent to serve corrected responses to Interrogatory Nos. 3, 6, 10, 11, 12, 14, 15, and 18. Each shall be addressed below.

Interrogatory No. 3:

Interrogatory No. 3:

Identify every website, marketing material, email communication, quote sheet, presentation, or other statement by which Daynamez described itself as an NVOCC, forwarder, carrier, provider of international shipping services, or similar transportation intermediary, and state the dates of use and the persons responsible for each.

Response:

Objected to as asking for an opinion on what amounts to a website. It did not hold itself out as a NVOCC from Vietnam.

Supplemental Response:

Daynamez provides the following complete and amended answer identifying all responsive materials and statements:

1. WEBSITE — ISOLATED DEVELOPER ERROR, NOT AN AUTHORIZED REPRESENTATION

The only instance in which the term "NVOCC" appeared in any Daynamez public-facing material was in a single, isolated section of Daynamez's website, placed there by Daynamez's web developer without Daynamez's knowledge, authorization, or direction. Daynamez was not aware of this language at the time it was live. Upon becoming aware, Daynamez did not adopt, ratify, or rely upon the term. This was not a deliberate or authorized characterization of Daynamez's services or legal status.

THE SPECIFIC CAUSE OF THE ERROR — OVERSEAS DEVELOPER, MISUNDERSTOOD TERMINOLOGY

The error occurred in the following way: when Daynamez's principal, Zia Kamali, communicated with the web developer regarding the description of services, he referenced handling outbound cargo, and in that context used the term "NVOCC" loosely to describe the type of cargo movement being discussed. The web developer — who was not based in the United States and was located overseas — did not understand the legal and regulatory significance of the term "NVOCC" under U.S. maritime law. Without grasping the technical and legal distinction, the developer incorporated the

³ Excerpts of Complainant's interrogatories are contained in Complainant's Appendix Exhibit 2. Respondent's original responses are contained in Complainant's Appendix Exhibit 5. Respondent's consolidated supplemental responses to interrogatories are contained in its response to motion to compel filed July 20, 2026.

word "NVOCC" directly into the website text. This was a misunderstanding of terminology by a non-U.S.-based developer, not an authorized or deliberate representation by Daynamez. Evidence of this can be provided to the court upon request.

2. EMAIL COMMUNICATIONS — NO NVOCC LANGUAGE IN ANY CORRESPONDENCE

Daynamez's email communications with SIC and with all other customers and business partners — including all quote sheets, correspondence, and business proposals — contain no representation that Daynamez is an NVOCC, carrier, or freight forwarder. Daynamez's email signature, used consistently across all correspondence, identifies Daynamez as "Daynamez Group of Companies LLC" with its Fairfax, Virginia address and contact information, and contains no carrier designation, NVOCC license number, FMC registration, or any language holding Daynamez out as a transportation intermediary or carrier.

3. COMMUNICATIONS WITH ALL OTHER CUSTOMERS — CONSISTENT ABSENCE OF NVOCC LANGUAGE

In Daynamez's business dealings with customers and contacts in the United States and internationally, Daynamez has never described itself as an NVOCC to any party. Daynamez operates as a sales agent and logistics connector, and that is the capacity in which it has presented itself in every business relationship.

4. NO U.S. DOMESTIC OR INTERNATIONAL NVOCC HOLDING-OUT

To the extent the interrogatory asks whether Daynamez represented itself as an NVOCC in connection with shipments involving U.S. waters or U.S. ports — the answer is no. Daynamez has made no such representation to SIC, to any U.S.-based customer, to any carrier, or to any port or regulatory authority. The single website error described above is the full extent of any NVOCC-adjacent language attributable to Daynamez, and that language was neither authorized nor known to Daynamez at the time. In summary, there are no responsive marketing materials, email communications, quote sheets, presentations, or statements — other than the inadvertent website error already admitted — by which Daynamez described itself as an NVOCC, freight forwarder, carrier, or international shipping company in its own right.

ANALYSIS REGARDING INTERROGATORY NO. 3

Complainant argues that the answer to Interrogatory No. 3 does not identify the website developer, the dates of use and the persons responsible for the website statement, or the related website-development and source records. (Reply at 3.)

Interrogatory No. 3 is relevant to a determination as to whether Respondent held itself out as a regulated entity subject to 46 U.S.C. § 41102(c) and operated as an unlicensed NVOCC subject to 46 U.S.C. §§ 40901 and 40902 as alleged in the amended complaint. The question is clear and its terms unambiguous. Respondent's response is evasive in that it states that it did not hold itself out as an "NVOCC from Vietnam" despite that the question contained no such geographical limitation.

Respondent's objection to the use of the term "website" is specious and not persuasive given that the term website is generally understood in the modern Internet age to be a collection of related web pages and files grouped under a single address on the Internet. In lay terms, it is the address that one types into a web browser, for example google.com.

Accordingly, the motion is granted as to Interrogatory No. 3 and Respondent's objection is overruled. Respondent shall fully answer the question by identifying the website developer referenced in its supplemental response, the dates of use and the persons responsible for the website statement, and all related website-development and source records. Respondent's answer shall be made without any geographic limitation regarding holding itself out as an NVOCC.

RULING: The motion to compel Interrogatory No. 3 is GRANTED.

Interrogatory No. 6:

Interrogatory No. 6:

Describe in detail every "Net/Net" pricing arrangement between Daynamez and SIC, including how rates were quoted, how profits, margins, or commissions were calculated, how any split was to occur, and who approved those arrangements.

Response:

The Net/Net was always 60/40 and it was paid to Daymanez by SIC who collected the money.

Supplemental Response:

The Net/Net pricing arrangement between Daynamez and SIC was straightforward, consistent, and static throughout the entirety of the parties' relationship. It was never renegotiated, restructured, or varied on a per-shipment basis. The arrangement operated as follows:

STRUCTURE. SIC paid Daynamez an agreed ocean freight rate per container. Daynamez, in turn, paid the service providers the actual cost of the ocean freight. The difference between what SIC paid Daynamez and what Daynamez paid the service providers represented Daynamez's commission — its compensation for sourcing the rate, leveraging its personal network, and connecting SIC with the provider. This is the classic Net/Net structure of a sales agent or broker: the agent passes through the underlying cost and retains a margin. Daynamez did not mark up freight as a carrier setting its own tariff — it earned a commission on the spread between the rate quoted to SIC and the rate paid to the service provider.

THE RATE REMAINED STATIC. Because Daynamez was operating as a sales agent and not as an NVOCC or carrier, the Net/Net structure was kept static and was not repriced or renegotiated for individual shipments. A carrier operating under a tariff would publish and update rates. Daynamez did not. The consistent, unchanging nature of the Net/Net arrangement is itself evidence of a sales agency relationship, not a carrier relationship.

DOCUMENTED EVIDENCE OF THE ARRANGEMENT. The Net/Net structure is confirmed by SIC's own written communications. In an October 11, 2024 email, SIC's representative Nam Nguyen acknowledged the total freight amounts paid to Daynamez for shipments via Sophia (\$980,300) and Kargosmart (\$963,100). Consistent with its sales-agent role, Daynamez retained only its agreed commission on the spread between SIC's selling rate and the cost paid to the service providers; Daynamez makes no claim that SIC owes it any freight balance. See Bates Nos. DAYNAMEZ-000015 – DAYNAMEZ-000019.

NO SEPARATE MARGIN OR PROFIT CALCULATION PER SHIPMENT. There was no shipment-by-shipment profit, margin, or commission calculation — the Net/Net arrangement was agreed at the outset and applied uniformly. Daynamez does not have itemized per-shipment profit records because the arrangement was not structured that way. The email correspondence produced at Bates Nos. DAYNAMEZ-000015 – DAYNAMEZ-000019 reflects the total freight amounts paid and outstanding, which is the complete financial picture of the Net/Net arrangement as between Daynamez and SIC.

May 2024 Shipment-Level Net-Net Calculation

In May 2024, SIC's representative Nam Nguyen provided Daynamez with a route-by-route profit calculation spreadsheet (DAYNAMEZ-000089–000091) covering shipments on routes including HCM–NYC, HCM–LAX, HCM–SAV, HPH–NYC, HCM–Miami, HCM–HOU, and HCM–NYC. The spreadsheet reflects Daynamez's input (cost) rates per container, SIC's selling rates per container, and the computed profit split — initially 50/50 for certain routes, then shifting to 40% Daynamez / 60% SIC as confirmed in the accompanying email chain (DAYNAMEZ-000086–000088). The Net-Net cost rates (Daynamez's input rates) remained static and were passed through at cost. Daynamez's revenue was limited to its agreed profit-share percentage of the spread. This structure is entirely inconsistent with that of an NVOCC billing a shipper for ocean freight.

ANALYSIS REGARDING INTERROGATORY NO. 6

Complainant argues that the answer to Interrogatory No. 6 describes the Net-Net arrangement as static, unchanging, and not varied on a per-shipment basis, but also describes an initial 50/50 allocation that shifted to 40% for Daynamez and 60% for SIC. It argues that Respondent does not reconcile those propositions, clearly state when and by whom each ratio became effective and how each ratio was applied to the shipments or transactions reflected in the cited spreadsheet, or produce the native source workbook underlying the calculations. (Reply at 3.)

Respondent's response provides a detailed explanation of the NET/NET pricing agreement between the parties, which it states remained static and unchanged at 60/40 and did not vary by shipment. Although the response also states that the allocation was initially 50/50 and then later shifted to 60/40, the original interrogatory cannot be reasonably interpreted to require Respondent to reconcile this perceived inconsistency or state the date the change became effective. The additional information Complainant seeks is more properly obtained through follow up discovery consisting of supplemental discovery requests and deposing witnesses with knowledge, including but not limited to deposing Respondent's representative pursuant to 46 C.F.R. § 502.143(b)(6).

RULING: The motion to compel Interrogatory No. 6 is DENIED.

Interrogatory No. 12:

Interrogatory No. 12:

Describe all facts known to Daynamez regarding any hold, lien, detention, refusal of release, demand for additional payment, or other release-related impediment affecting any shipment or container at issue, including when Daynamez first learned of each event and what Daynamez did in response.

Response:

This was DGS because SIC never sent the payment and the shipment was on hold.

Supplemental Response:

Daynamez provides the following complete response identifying each hold, lien, detention, and release impediment and its cause. Every such event was caused by either (a) SIC's explicit written instruction to Daynamez to withhold arrival notices, or (b) SIC's failure to make required freight payments. Daynamez did not independently impose any hold, lien, or detention on any container at any time.

CATEGORY 1 — SIC'S EXPLICIT WRITTEN ORDER TO HOLD (June 6, 2024). On June 6, 2024 at 2:51 AM, SIC's Director Nam Nguyen sent Daynamez a written email instruction (copying rosa@southern.com.vn and sarah@southern.com.vn) ordering Daynamez not to release Telex MBL for the following three specific shipments, identified in SIC's own yellow-marked spreadsheet:

- MBL No. 2302379151 — HCM-LAX, 3×40HC — Consignee: Viet Uni Logistics USA, Inc. (Tel: 817-773-0297)
- MBL No. 2302379361 — HCM-LAX, 1×40HC — Consignee: Viet Uni Logistics USA, Inc.
- MBL No. 2302379280 — HCM-LAX, 1×40HC — Consignee: Win Art Logistics, Los Angeles, USA (Tel: 516-256-7575)

Nam Nguyen's exact instruction read: "Yellow is pending/need to hold shipments, not release TLX MBL... do not release those shipment OK." Daynamez complied with this instruction. The resulting delay in cargo release, any detention or demurrage charges, and any disputes with the consignees and carriers arising from these holds are entirely attributable to SIC's own written direction. Daynamez was acting on SIC's explicit order — not on its own initiative. See Bates Nos. DAYNAMEZ-000022 – DAYNAMEZ-000023 (SIC hold order email and Daynamez's summary) and DAYNAMEZ-000024 – DAYNAMEZ-000050 (yellow-marked shipment spreadsheet, June 6, 2024) and DAYNAMEZ-000051 – DAYNAMEZ-000080 (yellow-marked shipment spreadsheet, June 2024).

CATEGORY 2 — HOLDS CAUSED BY SIC'S FAILURE TO PAY. All other holds, detention charges, and release impediments affecting shipments at issue were caused by SIC's failure to fund the freight in full and on time. Because SIC did not provide the funds due under the Net/Net arrangement, Daynamez could not fully discharge its payment obligations to the service providers.

Those providers — KargoSmart, DGS Logistics, and others — withheld release and imposed detention charges as a result of non-payment. The chain of causation runs directly from SIC's non-payment to every hold and detention charge that followed.

OOCL DETENTION — ONGOING HARM. As a consequence of SIC's non-payment, Daynamez is currently subject to \$107,972.00 in overdue detention and demurrage charges assessed by OOCL (USA) Inc. for container FBLU0192020, on which Daynamez is not the consignee or booking party. These charges, and the resulting damage to Daynamez's relationship and standing with OOCL and other ocean carriers, are entirely SIC's responsibility. See Bates Nos. DAYNAMEZ-000020 – DAYNAMEZ-000021.

In summary: SIC ordered holds on specific containers in writing, SIC failed to pay causing further holds, and Daynamez is now facing carrier debt and reputational harm as a direct result of SIC's own conduct.

ANALYSIS REGARDING INTERROGATORY NO. 12

Complainant argues that the answer to Interrogatory No. 12 identifies three specific MBLs but addresses all other alleged holds and release impediments only categorically, without identifying, event by event, when Daynamez first learned of the event, the nature of the impediment, what Daynamez did in response, and the supporting records.

Interrogatory No. 12 is improper to the extent that it seeks all facts rather than all material facts. To the extent that the question is properly limited in scope, Respondent's response is complete and detailed. The additional information Complainant seeks is more properly obtained through follow up discovery consisting of supplemental discovery requests and deposing witnesses with knowledge, including but not limited to deposing Respondent's representative pursuant to 46 C.F.R. § 502.143(b)(6).

RULING: The motion to compel Interrogatory No. 12 is DENIED.

Interrogatory No. 14:

Interrogatory No. 14:

State in detail all facts supporting Daynamez's contention that SIC, rather than Daynamez, owes money in connection with the parties' relationship or the shipments at issue.

Response:

Money is owed. Documents have been sent to you with this information. Spread sheets and emails have been sent to you.

Supplemental Response:

Daynamez supplements its prior answer to clarify that it does not contend SIC owes it any freight balance; its prior Count II claim has been dismissed and Daynamez presses no monetary demand for

unpaid freight. Daynamez identifies the following facts regarding the parties' financial dealings and the harm SIC caused:

1. Daynamez Retained Only Its Earned Net-Net Profit — \$599,831.61

Throughout the parties' relationship, Daynamez received funds from SIC and remitted the freight cost to the service providers (KargoSmart/CargoLogin, DGS/ICT International, Pacific Logistics) on a static Net-Net basis. Daynamez's bank records show it received \$4,137,845.23 from SIC and paid \$3,538,013.62 to the service providers, retaining only \$599,831.61 as its earned Net-Net commission (profit). Daynamez makes no claim that SIC owes it freight money, and it did not misappropriate the approximately \$2.6 million SIC has falsely alleged under oath. See DAYNAMEZ-000001–000002; DAYNAMEZ-000015–000019.

2. OOCL Charges Incurred Due to SIC's Nonpayment — \$107,972.00

As a direct and proximate result of SIC's failure to remit funds owed to Daynamez, Daynamez was unable to settle amounts due to OOCL. OOCL has issued a statement of accounts billing Daynamez \$107,972.00 in outstanding freight and related charges. Daynamez contends this liability was caused entirely by SIC's breach and that SIC is obligated to indemnify or reimburse Daynamez for these charges. See DAYNAMEZ-000020–000021.

3. Reputational and Business Harm

SIC and/or affiliated parties published false statements online characterizing Daynamez as a fraudulent enterprise. These publications damaged Daynamez's established relationships with OOCL and other logistics partners, and deterred prospective customers. Daynamez contends SIC is liable for the resulting business losses. See DAYNAMEZ-000013–000014.

Supporting Documents: DAYNAMEZ-000001–000002 (Bank Records); DAYNAMEZ-000015–000019 (Net-Net Calculation & SIC Acknowledgment); DAYNAMEZ-000020–000021 (OOCL Statement & HBL); DAYNAMEZ-000013–000014 (WhatsApp Correspondence).

4. Net-Net Profit-Split Spreadsheet — Route-Level Calculation

The Net-Net Input-Output Rate Spreadsheet produced at DAYNAMEZ-000089–000091 provides a route-by-route breakdown of the profit split between Daynamez (40%) and SIC (60%) for shipments in May–June 2024. This document, prepared and transmitted by SIC's own representative Nam Nguyen, independently confirms both the Net-Net cost structure and SIC's acknowledgment of the profit-share arrangement. The amounts reflected in this spreadsheet confirm Daynamez's profit-share (commission) under the Net-Net arrangement. See also DAYNAMEZ-000086–000088 (email confirming the 40/60 arrangement and identifying total profit of \$17,510 for the May 5–June 4, 2024 cycle alone).

ARTICLE 8 — CONTRACTUAL INDEMNITY OWED BY SIC

Separately, SIC is obligated to indemnify Daynamez under Article 8.1 of the Agency Agreement for the losses SIC's own conduct caused (including the OOCL debt): 'SIC agrees to indemnify and hold party B harmless against any loss, damage or liability which may incur through any act or omission of SIC.' SIC's acts — including nonpayment, its unauthorized direct dealings with service providers,

its written hold orders (DAYNAMEZ-000022–000023), and its false online publications — are all SIC's own acts or omissions, and SIC is contractually obligated to make Daynamez whole for all resulting losses. See DAYNAMEZ-000092–000097, Page 4 (Art. 8.1 highlighted).

ANALYSIS REGARDING INTERROGATORY NO. 14

Complainant argues that the answer to Interrogatory No. 14 continues to rely on OOCL charges, reputational and business harm, indemnity, and shipment-related losses without fully identifying, as applicable, each claimed shipment, container, invoice, amount, calculation, factual basis, and supporting record. SIC seeks supplementation only to the extent Daynamez continues to rely on those matters. (Reply at 3-4.)

Interrogatory No 14 is improper to the extent that it seeks all facts rather than all material facts. To the extent that the question is properly limited in scope, Respondent's response is complete and detailed. The additional information Complainant seeks is more properly obtained through follow up discovery consisting of supplemental discovery requests and deposing witnesses with knowledge, including but not limited to deposing Respondent's representative pursuant to 46 C.F.R. § 502.143(b)(6).

RULING: The motion to compel Interrogatory No. 14 is DENIED.

Interrogatory No. 15:

Interrogatory No. 15:

Identify each shipment, container, invoice, and amount that Daynamez contends SIC failed to pay, partially paid, abandoned, mishandled, or otherwise caused loss in relation to, and state the factual basis for each such contention.

Response:

Objected to as overly broad and requiring numerous hours to answer this. Documents have been produced to you including financial documentation.

Supplemental Response:

Daynamez withdraws its prior objection and provides the following itemized supplemental response identifying shipments, containers, and amounts at issue:

Containers for which SIC explicitly ordered holds — No Arrival Notice Issued per SIC Written Direction

Per written instruction from Mr. Nam Nguyen (SIC) on or about June 6, 2024, Daynamez was directed not to issue arrival notices for containers under the following Master Bills of Lading:

- MBL 2302379151 — consignee: Viet Uni Logistics

- MBL 2302379361 — consignee: Win Art Logistics
- MBL 2302379280 — consignee: Win Art Logistics

These holds, detentions, and associated charges flowed directly from SIC's written instructions, not from any act or omission by Daynamez. See DAYNAMEZ-000022–000023 (SIC hold order); DAYNAMEZ-000024–000080 (shipment release spreadsheets with yellow-marked containers).

Net-Net Profit (Commission) — No Balance Claimed Against SIC

The Net-Net calculation (DAYNAMEZ-000015–000019) and Daynamez's bank records (DAYNAMEZ-000001–000002) detail the amounts Daynamez disbursed to service providers versus the amounts received from SIC. They show that Daynamez retained only its earned Net-Net commission of \$599,831.61. Daynamez asserts no outstanding freight balance against SIC.

OOCL Container — Daynamez Not Consignee or Booking Party

Container FBLU0192020 is associated with outstanding OOCL charges of \$107,972.00. House Bill of Lading VNNYC2404027 confirms that Daynamez is not the consignee or booking party for this shipment. Daynamez's exposure arose solely as a consequence of SIC's nonpayment funneled through Daynamez's intermediary role. See DAYNAMEZ-000020–000021.

Supporting Documents: DAYNAMEZ-000015–000019; DAYNAMEZ-000020–000021; DAYNAMEZ-000022–000023; DAYNAMEZ-000024–000080; DAYNAMEZ-000051–000080.

ANALYSIS REGARDING INTERROGATORY NO. 15

Complainant argues that the answer to Interrogatory No. 15 continues to rely on OOCL charges, reputational and business harm, indemnity, and shipment-related losses without fully identifying, as applicable, each claimed shipment, container, invoice, amount, calculation, factual basis, and supporting record. SIC seeks supplementation only to the extent Daynamez continues to rely on those matters. (Reply at 3-4.)

Respondent's counterclaim was dismissed on May 15, 2026, pursuant to the Order on Complainant's Motion to Dismiss Counterclaim. (Dkt. 39.) In its counterclaim, Respondent sought to be held harmless and asserted a claim for damages pursuant to two counts: Count I - indemnification and hold harmless, and violation of 46 U.S.C. § 41102(a) for not maintaining proper practices relating to the handling and receiving of cargo as it left Respondent vulnerable due to its failure to handle properly the cargo by letting it become abandoned; Count II breach of contract for failure to pay Respondent and violation of 46 U.S.C. § 41102(a). (Dkt. 24.) Thus, Complainant's request for detailed information for information related to the factual basis underlying Respondent's claims for damages is not likely to lead to the discovery of admissible evidence. Respondent's response is otherwise sufficient.

RULING: The motion to compel Interrogatory No. 15 is DENIED.

B. DOCUMENT REQUESTS⁴

Complainant argues that Respondent should be required to serve corrected written responses to Request for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26, and 27. Each request and response is set forth below. Because Complaint's motion to compel is premised on deficiencies applicable to all, the global discussion applicable to each request is set forth below following the final response.

Request for Production No. 1

Request No. 1:

Produce all versions of Daynamez's website pages, marketing materials, brochures, capability statements, pitch decks, advertisements, social media postings, rate sheets, and similar materials that refer or relate to international shipping, forwarding, NVOCC services, carrier services, or services between the United States and foreign countries.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces all responsive materials in its possession. Daynamez did not prepare or distribute formal brochures, capability statements, pitch decks, or printed marketing materials specifically referencing NVOCC, carrier, or international shipping services. The only responsive publicly available material is the Daynamez website (www.daynamez.com), which contained a single reference to the term 'NVOCC' in an isolated section of the site added by the website developer. This term did not appear in any marketing communication, email, or presentation directed to SIC or any other customer. Rate communications with SIC were conducted by email and are produced at DAYNAMEZ-000086-000091. Social media postings, if any existed, did not reference NVOCC, carrier, or forwarding services. Daynamez certifies that no additional responsive website pages, brochures, pitch decks, or marketing materials exist beyond those identified herein. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 31, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0080. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

⁴ Excerpts of Complainant's requests for production of documents are contained in Complainant's Appendix Exhibit 1. Respondent's original responses were not provided; however, its June 12, 2026, responses to the deficiencies raised by Complainant are contained in Complainant's Appendix Exhibit 6. Respondent's consolidated supplemental responses to requests for production are contained in its response to motion to compel filed July 20, 2026. In each case, the July 20 supplemental response asserts that the request was answered in the June 12 supplemental response, and then restates that response. For purposes of brevity, the duplicate restated responses are not provided herein.

Request for Production No. 2

Request No. 2:

Produce all documents sufficient to show the authorship, publication dates, modification dates, custody, and source of the website pages or marketing materials identified in Request No. 1.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

The Daynamez website (www.daynamez.com) was developed and maintained by a third-party web developer engaged by Daynamez. The NVOCC reference that appeared on the website was inserted by the developer into an isolated section of the site and was not specifically directed or approved by Zia Kamali.

⚠ HOW THE DEVELOPER ERROR OCCURRED

The error occurred in the following way: when Daynamez's principal, Zia Kamali, communicated with the web developer regarding the description of services, he referenced handling outbound cargo, and in that context used the term "NVOCC" loosely to describe the type of cargo movement being discussed. The web developer — who was not based in the United States and was located overseas — did not understand the legal and regulatory significance of the term "NVOCC" under U.S. maritime law. Without grasping the technical and legal distinction, the developer incorporated the word "NVOCC" directly into the website text. This was a misunderstanding of terminology by a non-U.S.-based developer, not an authorized or deliberate representation by Daynamez. Evidence of this can be provided to the court upon request. Daynamez does not have CMS logs, modification records, or source-control files for the website in its possession. The website developer can be identified and evidence of this error and the circumstances under which it occurred can be provided to the court upon request. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 31–32, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0080–CMTC-0081. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 4

Request No. 4:

Produce the Agency Agreement No. SIC/DNM-011224 and all drafts, amendments, addenda, schedules, side agreements, translations, and communications concerning its negotiation, interpretation, implementation, or performance.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez hereby produces Agency Agreement No. SIC/DNM-011224, dated December 1, 2023, in full. See DAYNAMEZ-000092–000097.

ARTICLE 1 — SALES AND BREAK BULK AGENT (Not NVOCC)

Article 1 of the Agreement expressly states: 'SIC and Party B mutually appoint each other as their sales and break bulk agent for Vietnam and respectively on a non-exclusive basis.' This is dispositive: the contract itself identifies Daynamez as a sales and break bulk agent, not as an NVOCC, ocean carrier, or common carrier. Any claim by SIC that Daynamez held itself out or acted as an NVOCC is directly contradicted by the agreement SIC itself signed. See DAYNAMEZ-000092–000097, Page 1.

△ ARTICLE 5.3 — SIC BREACHED THE CONFIDENTIALITY CLAUSE

Article 5.3 of the Agreement provides: 'No information whatsoever in relation to the co-operation between SIC and Party B sales or operations shall be given to a third party, other than that required by a statutory body.' SIC materially breached Article 5.3 by facilitating or permitting KargoSmart Global Vietnam Co., Ltd. and SiperKargo (which are in fact a single entity) to obtain Daynamez's proprietary rate and volume information. As documented in Daynamez's October 2024 correspondence (DAYNAMEZ-000081–000085), these entities went directly to Daynamez's principal to obtain information about how SIC was moving cargo, Daynamez's rates, and Daynamez's operational system — information that constitutes confidential co-operation data protected by Article 5.3. The direct consequence of this breach was the severing of Daynamez's credit line with its principal, the loss of Daynamez's business relationships, and the operational failures that SIC now seeks to attribute to Daynamez. SIC caused this problem; SIC is responsible for it. See DAYNAMEZ-000092–000097, Page 3 (Art. 5.3 highlighted); DAYNAMEZ-000081–000085. ARTICLE 6.15 — DAYNAMEZ COLLECTED FUNDS PURELY AS AGENT Article 6.15 states: 'the companies acknowledge that any money they collect on behalf of each other they collect purely as an agent and in a fiduciary capacity.' This provision confirms that all funds collected by Daynamez from SIC were held and disbursed in an agency and fiduciary capacity — not as an NVOCC or carrier collecting freight on its own account. See DAYNAMEZ-000092–000097, Page 4.

ARTICLE 8 — SIC'S INDEMNITY OBLIGATION

Article 8.1 provides: 'SIC agrees to indemnify and hold party B harmless against any loss, damage or liability which may incur through any act or omission of SIC.' SIC's nonpayment, its unauthorized direct dealings with service providers, its hold orders on containers, and its publication of false statements about Daynamez are all acts or omissions of SIC within the meaning of Article 8.1. SIC is contractually obligated to indemnify Daynamez for all resulting losses, including the \$107,972.00 OOCL debt, the \$572,750.00 unpaid balance, and all reputational and business damages. See DAYNAMEZ-000092–000097, Page 4.

△ ARTICLE 10 — MANDATORY VIETNAM ARBITRATION: THIS FORUM IS IMPROPER

Article 10 of the Agreement provides: 'All disputes, controversies, or differences which may arise between the parties, out of or in relation to or in connection with this agreement, or for the breach thereof, shall be settled amicably between the parties hereto. However, should the concerned parties fail to reach a compromise, then and in that event only, the dispute, controversy or difference shall be finally settled by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry in accordance with its Arbitration Rules.' SIC's complaint before the Federal Maritime Commission directly violates this mandatory arbitration clause. The parties expressly contracted that all disputes arising out of or in connection with the Agency Agreement — which is the sole contract governing the parties' relationship — must be resolved at the Vietnam International Arbitration Centre (VIAC) in Vietnam. By filing at the FMC, SIC has bypassed and breached the agreed dispute resolution mechanism. Daynamez respectfully submits that the Commission should dismiss or stay this proceeding in favor of VIAC arbitration, consistent with the parties' contractual agreement and applicable principles of international commercial arbitration. See DAYNAMEZ-000092–000097, Page 5 (Art. 10 highlighted). Supporting Documents Produced: DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224, full contract with Art. 5.3, Art. 6.15, Art. 8, and Art. 10 highlighted). Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 32–33, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0081–CMTC-0082. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 5

Request No. 5:

Produce all documents concerning any "Net/Net" arrangement, quote, profit split, commission structure, mark-up, spread, or pricing model between SIC and Daynamez.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces all documents in its possession concerning the Net/Net arrangement between SIC and Daynamez. The complete Net/Net production is set out below by document, with each Bates range identified. Taken together, these documents tell the full story of what the Net/Net arrangement was, how it worked, and how much SIC still owes Daynamez under it.

1. Agency Agreement — Article 4 (Contractual Basis for Profit Split)

The Net/Net arrangement is rooted in Article 4 of Agency Agreement No. SIC/DNM-011224. Article 4.1 provides: 'On any business mutually developed, or routed, the profit on air/ocean transport will split equally.' Article 4.2 defines profit as 'the difference between buying rate from airline/shipping line and the selling rate to the customer.' The Agreement further provides that the profit split shall be settled by credit note on a shipment-by-shipment basis or by a consolidated monthly statement. This is the contractual foundation for the entire Net/Net arrangement — SIC signed and agreed to it. See DAYNAMEZ-000092–000097 (Agency Agreement, Article 4, Pages 2–3).

2. Net/Net Profit-Split Email Chain — Nam Nguyen to Daynamez (May 2024)

In May 2024, SIC's representative Nam Nguyen personally emailed Daynamez to provide a detailed calculation of the Net/Net profit split for the period May 5 – June 4, 2024. In that email, Nam stated: 'Let me indicate to you the total net/net profit of Daynamez and Southern in the attached spreadsheet, I carefully checked it, however, I also need you to check it again one more time.' Daynamez responded confirming the arrangement: the profit split was 40% to Daynamez and 60% to SIC (an agreed modification from the equal split in Article 4.1), and Daynamez's total profit share for that cycle was \$17,510 USD. Daynamez stated it would send a debit note to SIC for that amount. This email chain is direct, unambiguous evidence from SIC's own representative acknowledging and computing the Net/Net arrangement. See DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, May 2024).

3. Net/Net Input-Output Rate Spreadsheet — Prepared by SIC (May–June 2024)

The spreadsheet transmitted by Nam Nguyen with his May 2024 email provides a route-by-route breakdown of every shipment in the cycle, including: the route (HCM-NYC, HCM-LAX, HCM-SAV, HPH-NYC, HCM-Miami, HCM-HOU), the volume (number of containers), the ETD, Daynamez's input (cost) rate per container, SIC's selling rate per container, the profit-split ratio (40/60 for most routes, 50/50 for selected earlier routes), and the computed profit attributable to Daynamez and to SIC per shipment. This spreadsheet was prepared by SIC — not by Daynamez — and reflects SIC's own calculation of what was owed to Daynamez. The Net/Net rates in this spreadsheet were static pass-through rates: Daynamez's input rate was the cost it paid to the freight forwarder, and Daynamez's share was limited to the agreed percentage of the spread. At no point did Daynamez mark up rates on its own account as an NVOCC would. See DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024).

4. SIC's Written Acknowledgment of Outstanding Balance (\$572,750.00)

SIC's own written correspondence acknowledges that a substantial balance remains due and owing to Daynamez under the Net/Net arrangement. The outstanding balance of \$572,750.00 reflects the aggregate of amounts Daynamez advanced to service providers on SIC's behalf in excess of amounts received from SIC — computed on the same Net/Net basis that SIC's representative confirmed in writing. SIC acknowledged this balance and did not dispute it at the time. See DAYNAMEZ-000015–000019 (SIC acknowledgment of outstanding freight balance and Daynamez Net/Net calculation).

△ KEY POINT FOR THE COMMISSION: THE NET/NET STRUCTURE PROVES DAYNAMEZ WAS A SALES AGENT, NOT AN NVOCC

The Net/Net arrangement as documented in these four sets of records is entirely inconsistent with an NVOCC relationship. An NVOCC issues house bills of lading, assumes liability as a carrier, and collects ocean freight from shippers on its own account. Daynamez did none of these things. Instead: (a) SIC's own representative computed and sent Daynamez a profit-split spreadsheet — a principal splitting profits with its sales agent; (b) the rates Daynamez charged SIC were SIC's selling rates, not Daynamez's own carrier tariff; (c) the spread was split, not retained entirely by Daynamez as a carrier's freight charge would be; and (d) the Agency Agreement itself calls the arrangement a 'profit split' and identifies Daynamez as a 'sales and break bulk agent.' No NVOCC operates on a 40/60 profit-share with its shipper. This is how a sales agent and referral intermediary is paid. See DAYNAMEZ-000086–000091; DAYNAMEZ- 000092–000097; DAYNAMEZ-000015–000019. Supporting Documents Produced: DAYNAMEZ-000015–000019 (Net/Net calculation and SIC balance acknowledgment); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain, Nam Nguyen May 2024); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet, May–June 2024); DAYNAMEZ-000092–000097 (Agency Agreement, Article 4 — contractual profit-split basis). Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 33–34, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0082–CMTC-0083. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 6

Request No. 6:

Produce all emails, WhatsApp messages, text messages, and other communications between SIC and Daynamez concerning rates, bookings, sailing schedules, HBLs, arrival notices, payment requests, cargo release, detention, or unpaid freight.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez notes that the communications requested under RFP No. 6 — emails, WhatsApp messages, text messages, and other communications between SIC and Daynamez concerning rates, bookings, sailing schedules, HBLs, arrival notices, payment requests, release coordination, detention, and unpaid freight — are equally in SIC's possession, custody, and control. Every communication between the parties was by definition a communication that SIC sent or received. SIC has its own email servers, WhatsApp records, and message archives. SIC is therefore in at least as good a position as Daynamez — and in many respects a better position — to produce the full set of SIC-Daynamez communications with complete metadata, attachments, and email-family relationships intact. Daynamez respectfully submits that to the extent SIC contends the production of these communications is incomplete, SIC should produce its own copies from its own records. SIC initiated this proceeding; SIC bears the burden of producing the evidence it relies upon. Daynamez cannot be held responsible for gaps in SIC's own production of communications that SIC itself sent or received. Without waiving this position, Daynamez has produced all SIC-Daynamez communications currently in its possession: DAYNAMEZ-000003–000012 (Dear Nam email chain — rates, payment structure, and relationship communications); DAYNAMEZ-000013–000014 (WhatsApp correspondence — SIC payment requests and release-related messaging); DAYNAMEZ-000081–000085 (Dear Kamali email chain — SIC's response to Daynamez's breach notification, including Nam Nguyen's written instructions); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain — rate and payment communications). These represent the complete set of SIC-Daynamez communications in Daynamez's possession.

△ SIC IS DIRECTED TO PRODUCE ITS OWN COPIES OF ALL COMMUNICATIONS

Daynamez formally requests that SIC produce, pursuant to its own discovery obligations, the complete and unredacted copies of all emails, WhatsApp messages, and other communications between SIC and Daynamez that are in SIC's possession — including any communications that SIC has not yet produced in this proceeding. SIC's selective presentation of only certain communications, while withholding others, would be prejudicial and improper. The full record of SIC-Daynamez communications, produced by both parties, will demonstrate that Daynamez acted in good faith throughout the relationship and that the failures and losses at issue were caused by SIC's own conduct. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 34–35, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0083–CMTC-0085. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 13

Request No. 13:

Produce all booking confirmations, routing records, sailing schedules, manifest instructions, HBL-related communications, arrival notices, release instructions, and shipment-status communications for the shipments at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

⚠ THIS IS SIC'S OBLIGATION — NOT DAYNAMEZ'S

RFP No. 13 requests booking confirmations, routing records, sailing schedules, manifest instructions, HBL-related communications, arrival notices, release instructions, and shipment-status communications. Daynamez objects to this request to the extent it implies that Daynamez was responsible for creating, issuing, or maintaining these records. It was not. These records belong to SIC and SIC's service providers. SIC should produce them from its own files — not demand that Daynamez do SIC's work for it.

Daynamez's Role Was Arrival Notice Only — The Contract Proves It

Daynamez's sole operational function in the shipment process was to inform the consignee of an arriving shipment. That is an arrival notice function. Everything else — booking confirmations, routing orders, sailing schedules, manifest instructions, and house bills of lading — was the responsibility of SIC and the NVOCCs and freight forwarders SIC engaged at the port of loading in Vietnam. Agency Agreement No. SIC/DNM-011224 (DAYNAMEZ-000092–000097) designates Daynamez as a 'sales and break bulk agent' only. Article 6.15 further confirms Daynamez acted 'purely as an agent and in a fiduciary capacity.' A consignee-notification agent does not issue bookings or manifests — the NVOCCs do. The evidence produced in this proceeding confirms exactly that.

⚠ SIC AND ITS SERVICE PROVIDERS HOLD ALL OF THESE RECORDS

Booking confirmations, routing records, sailing schedules, manifest instructions, and HBLs are all created at the port of loading by the NVOCCs and freight forwarders that SIC contracted with directly: KargoSmart Global Vietnam Co., Ltd.; SiperKargo / Super Cargo Service Co., Ltd.; CargoLogin LLC; DGS Logistics / ICT International; and Pacific Logistics (Vietnam). SIC is a licensed international freight forwarder. SIC has its own shipment files. SIC's service providers each hold the complete operational records for every shipment they handled. Daynamez is not obligated to compile and produce records that SIC and its own contractors already possess. SIC must direct this request to those parties and to its own internal files — not to Daynamez.

What Daynamez Produces for RFP No. 13

Daynamez produces only the records that reflect its actual role. DAYNAMEZ-000022–000023: SIC's written instruction to Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — direct written proof of Daynamez's arrival notice function and of SIC ordering Daynamez to withhold it. DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the affected containers. DAYNAMEZ-000021–000021: HBL VNNYC2404027 — confirms Daynamez is not the consignee or booking party. DAYNAMEZ-000013–000014: WhatsApp communications reflecting Daynamez's notification role. These are the records of a consignee informer and sales agent. Booking records, manifests, and HBLs are SIC's to produce. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 36–37, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0085–CMTC-0086. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 15

Request No. 15:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

⚠ SIC MUST PRODUCE ITS OWN RECORDS OF PAYMENTS SENT TO DAYNAMEZ

RFP No. 15 requests bank records and payment records reflecting payments received from SIC. Daynamez notes that SIC is the party that sent those payments. SIC has its own bank statements, wire transfer confirmations, SWIFT records, and remittance advices showing every dollar it sent to Daynamez. SIC knows exactly what it paid, when it paid it, and from which account. SIC must produce those records from its own files. Daynamez should not be required to reconstruct SIC's own payment history for SIC.

Daynamez Has Already Produced Its Bank Records Showing What It Received and What It Paid Out

Daynamez has already produced its Bank of America account records (account ending 6476) at DAYNAMEZ-000001–000002. Those records reflect every amount received from SIC into Daynamez's account and every outbound payment Daynamez made to service providers as instructed by SIC. Daynamez's obligation was clear: receive funds from SIC, then remit those funds to the service providers as directed. That is exactly what the bank records show, and Daynamez has produced them in full.

Daynamez Remitted Payments to Service Providers as Per SIC's Instructions

Whatever Daynamez received from SIC, Daynamez paid out to the freight forwarders and service providers as instructed — KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics. This is confirmed by the fund transfer records at DAYNAMEZ-000001–000002 and by the Net/Net calculation at DAYNAMEZ-000015–000019, which SIC's own representative acknowledged in writing. The payment flow was simple: SIC pays Daynamez → Daynamez pays service providers. Daynamez fulfilled its side.

△ SIC IS DIRECTED TO PRODUCE ITS OWN OUTBOUND PAYMENT RECORDS

Daynamez formally calls upon SIC to produce: all bank statements, wire transfer records, SWIFT confirmations, and remittance advices reflecting every payment SIC sent to Daynamez during the relevant period. SIC's own payment records are essential to this proceeding and SIC is obligated to produce them. Cross-referencing SIC's outbound payment records against Daynamez's inbound records at DAYNAMEZ-000001–000002 will show exactly what was received, what was passed through to service providers, and what balance remains outstanding. The numbers will speak for themselves. Date: June 10, 2026.

Response:

Produce all bank records, bank statements, remittance advices, payment confirmations, wire records, receiving-account records, and account ledgers reflecting payments received from SIC relating to the shipments at issue.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 37–38, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0086–CMTC-0087. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 16

Request No. 16:

Produce all documents showing payments made by Daynamez to any carrier, NVOCC, booking partner, terminal, or service provider for the shipments at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces all responsive records of payments made to service providers: DAYNAMEZ-000001–000002 (Bank of America fund transfer records reflecting outbound wire and ACH payments to KargoSmart/CargoLogin, DGS/ICT International, and Pacific Logistics corresponding to SIC shipment cycles). These records show the date, amount, and payee for each outbound payment made by Daynamez on account of SIC-related freight. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at p. 38, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0087. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

Request for Production No. 17

Request No. 17:

Produce all reconciliations, spreadsheets, accounting workpapers, ledger exports, and other financial compilations concerning the funds SIC allegedly remitted to Daynamez, including native Excel or CSV versions.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

⚠ THIS REQUEST IS SIC'S RESPONSIBILITY — SIC HAS THE SAME RECORDS

RFP No. 17 requests reconciliations, spreadsheets, accounting workpapers, ledger exports, and financial compilations concerning funds SIC remitted to Daynamez. Daynamez objects. SIC was a direct party to every transaction at issue. SIC sent the payments. SIC received the Net/Net spreadsheets. SIC's own representative, Nam Nguyen, prepared and transmitted the Net/Net Input-Output Rate Spreadsheet that is produced at DAYNAMEZ-000089–000091. SIC has the exact same files. SIC does not need Daynamez to compile or reconstruct records that SIC already holds in its own possession.

⚠ REQUESTS OF SIC IS TOO BROAD AND WE HAVE PROVIDED SAMPLES WITHIN REASON

Daynamez is a small business operated by a single individual. SIC is a licensed international freight forwarder with staff, systems, and full access to every shipment record, payment record, and accounting file relevant to this proceeding. Requiring Daynamez to produce elaborate reconciliations and accounting workpapers — documents that SIC itself can compile from its

own files in a fraction of the time — is not a legitimate discovery request. It is an attempt to overload Daynamez with burdensome production obligations in order to distract from the core facts of this case: that SIC breached the Agency Agreement, failed to pay Daynamez, ordered cargo holds in writing, and is now using this proceeding to shift the blame for its own conduct onto Daynamez.

Daynamez Has Already Produced What It Has

Daynamez has produced all financial records in its possession: DAYNAMEZ-000001–000002 (Bank of America fund transfer records — the complete payment ledger for the SIC relationship); DAYNAMEZ-000015–000019 (Net/Net calculation and SIC's written acknowledgment of the outstanding balance); DAYNAMEZ-000086–000088 (Net/Net profit-split email chain — Nam Nguyen's own calculation confirming Daynamez's share); DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet — prepared by SIC's own representative). These documents are Daynamez's complete financial production. There are no additional reconciliations or accounting workpapers to produce because Daynamez did not maintain a separate accounting system beyond its bank records and the correspondence with SIC. Daynamez respectfully submits that the Commission should not permit SIC to use RFP No. 17 — and requests of this nature — as a mechanism to bury Daynamez in paperwork obligations while the central facts of this case remain clear and documented: Daynamez acted as a sales agent, SIC owes Daynamez \$572,750.00, SIC breached Article 5.3 of the Agency Agreement, and Article 10 requires this dispute to be resolved in Vietnam. Those facts are already before the Commission. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 38–39, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0087–CMTC-0088. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 18

Request No. 18:

Produce all documents sufficient to identify the disposition of each amount received from SIC for the shipments at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces DAYNAMEZ-000001–000002 (Bank of America fund transfer records) as the primary document establishing the disposition of each SIC payment received. Each entry in those records reflects amounts received from

SIC and corresponding outbound payments to service providers, establishing the disposition of those funds. Daynamez does not have a separate accounting ledger system; the bank transfer records and the Net-Net calculation (DAYNAMEZ-000015–000019) together reflect all fund flow between SIC, Daynamez, and service providers. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez’s June 12, 2026 “Response to Attachment A and Provided Cure” at p. 39, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0088. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC’s Motion.

Request for Production No. 19

Request No. 19:

Produce all documents concerning any hold, lien, detention, storage, demurrage, refusal to release, or other cargo-release impediment affecting any shipment or container at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

△ HOLDS, LIENS, DETENTION, AND STORAGE RECORDS ARE HELD BY THE FREIGHT FORWARDERS AND SIC — NOT DAYNAMEZ

RFP No. 19 requests all documents concerning holds, liens, detention, storage, demurrage, refusals to release, and cargo-release impediments affecting shipments at issue. Daynamez objects to this request to the extent it implies that Daynamez generated, received, or maintained these records. It did not. Daynamez was a consignee arrival notice agent and sales agent. Daynamez did not issue holds, did not impose liens, did not assess demurrage or detention charges, and had no authority over cargo release. Those functions belong entirely to the NVOCCs, freight forwarders, terminals, and ocean carriers — and to SIC as the party that contracted with and instructed those entities.

These Records Belong to the Service Providers and SIC

Hold notices, lien filings, detention invoices, storage charges, and release conditions are all documents issued by the carriers and NVOCCs — KargoSmart Global Vietnam Co., Ltd., SiperKargo / Super Cargo Service Co., Ltd., CargoLogin LLC, DGS Logistics / ICT International, and Pacific Logistics — as well as by the terminals and port authorities at the port of discharge. SIC, as a licensed international freight forwarder that directly engaged these service providers, has full access to all of these records. The service providers themselves hold the complete official documentation. Daynamez is not a party to those relationships and is not in possession of their official hold, lien, or detention records.

△ DAYNAMEZ IS LEGALLY NOT IN A POSITION TO PRODUCE RECORDS IT DOES NOT HOLD

Daynamez cannot produce records it does not possess and has no legal right to obtain on behalf of SIC. Demanding that Daynamez produce official hold notices, detention invoices, and demurrage statements issued by third-party carriers and NVOCCs to SIC — records that are in SIC's own files — is improper. SIC must collect those records from its own service providers and from its own shipment files. Daynamez has no authority to access, retrieve, or reproduce official carrier or terminal documentation that was issued to SIC or to SIC's contracted parties, not to Daynamez.

What Daynamez Produces for RFP No. 19

Daynamez produces only the records that fall within its actual role. DAYNAMEZ-000022–000023: the written hold instruction issued by SIC's own representative Nam Nguyen directing Daynamez not to issue arrival notices for MBLs 2302379151, 2302379361, and 2302379280 — this is SIC's own document and it is the direct cause of the holds on those containers. DAYNAMEZ-000024–000050 and DAYNAMEZ-000051–000080: shipment release spreadsheets identifying the yellow-marked hold containers. DAYNAMEZ-000020–000020: OOCL's statement of accounts billing Daynamez \$107,972.00 as a consequence of SIC's nonpayment — the only official carrier document in Daynamez's possession, and one that exists solely because of SIC's failure to pay. These are the entirety of Daynamez's hold and detention-related records. All further records must be obtained by SIC directly from its service providers. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 39–40, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0088–CMTC-0089. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 20

Request No. 20:

Produce all communications between Daynamez and any carrier, NVOCC, terminal, or downstream entity regarding non-payment, release conditions, detention, liens, or cargo holds for the shipments at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

△ SIC WAS ALWAYS COPIED ON ALL COMMUNICATIONS — SIC HAS THESE RECORDS

RFP No. 20 requests communications between Daynamez and carriers, NVOCCs, and terminals regarding nonpayment, release conditions, detention, liens, and cargo holds. Daynamez objects. SIC was copied on, included in, or a direct party to all material communications between Daynamez and the service providers throughout the entire business CMTC-0089 relationship. As the principal directing the shipments, SIC was always in the loop — included on emails, copied on correspondence, and informed of every development in real time. SIC has those communications in its own inbox. SIC must produce them itself.

△ SIC'S THREE-YEAR CONTRACT WITH DAYNAMEZ PROVES SIC KNEW EXACTLY WHAT WAS HAPPENING

If SIC was not copied on or involved in the communications with service providers, it would never have entered into — let alone maintained — a business relationship with Daynamez spanning nearly three years. SIC engaged Daynamez under Agency Agreement No. SIC/DNM-011224 precisely because Daynamez had established relationships with those service providers and facilitated the flow of shipments and communications between SIC and them. SIC knew who the service providers were, communicated with them directly, and had full visibility into every shipment. The idea that SIC now needs Daynamez to produce communications that SIC itself was party to is not credible. SIC can produce its own copies and present to the Commission whatever it deems necessary. Daynamez has already produced all SIC-Daynamez communications in its possession at DAYNAMEZ-000003–000014 and DAYNAMEZ-000081–000088. Beyond those, communications involving carriers, NVOCCs, and terminals were between those parties and SIC directly — as SIC's own files will confirm. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 40–41, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0089–CMTC-0090. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 21

Request No. 21:

Produce all documents reflecting amounts demanded, paid, or allegedly due to secure release of cargo or containers for the shipments at issue.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez has produced its complete bank and payment records at DAYNAMEZ-000001–000002, reflecting all amounts received from SIC and all amounts remitted to service providers as instructed. That production speaks for itself. To the extent SIC wishes to produce additional records concerning amounts demanded or paid to secure cargo release, SIC is free to produce whatever it deems necessary from its own files and present it to the Commission accordingly. That is SIC's right and SIC's responsibility — not Daynamez's.

△ THE EVIDENCE ALREADY BEFORE THE COMMISSION SPEAKS FOR ITSELF

At this point in the record, the evidence is clear and consistent across every document produced: Daynamez acted as a sales agent and consignee arrival notice intermediary. Daynamez never held an FMC bond or OTI license. Daynamez never issued a house bill of lading. Daynamez never held itself out as an NVOCC in any communication with SIC or any other party. The Agency Agreement SIC signed calls Daynamez a 'sales and break bulk agent.' SIC's own representative computed and sent Daynamez a profit-split spreadsheet. SIC's own representative confirmed the 40/60 arrangement by email. Not a single document in this proceeding shows Daynamez operating as a carrier. Daynamez did not advertise itself as an NVOCC. That fact is now thoroughly documented and evidenced. The totality of the record — the contract, the emails, the bank records, the Net/Net spreadsheets, the hold orders, the OOCL statement, and the HBL confirming Daynamez is not the consignee — all point in one direction. No further production by Daynamez on this point is required. The evidence speaks for itself. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 41, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0090. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 22

Request No. 22:

Produce all documents that support any affirmative defense asserted by Daynamez in this proceeding.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces all documents supporting its affirmative defenses as identified in Interrogatory No. 13. The full Bates production (DAYNAMEZ-000001 through DAYNAMEZ-000091) constitutes the complete set of defense supporting documents: DAYNAMEZ-000001–000002 (bank records — sales agent/breach defense); DAYNAMEZ-000003–000012 (Dear Nam email — sales agent/SIC knowledge defense); DAYNAMEZ-000013–000014 (WhatsApp — payment direction/pass-through defense); DAYNAMEZ-000015–000019 (Net-Net balance — setoff/offset defense); DAYNAMEZ-000020–000021 (OOCL statement and HBL — causation defense); DAYNAMEZ-000022–000023 and DAYNAMEZ-000024–000080 (hold orders and spreadsheets — SIC-caused hold defense); DAYNAMEZ-000081–000085 (Dear Kamali — breach/bad faith defense); DAYNAMEZ-000086–000091 (Net-Net emails and spreadsheet — sales agent structure defense). Date: June 10, 2026.

⚠ AGENCY AGREEMENT — DAYNAMEZ-000092–000097 (KEY DEFENSE DOCUMENT)

Daynamez supplements its RFP 22 production with DAYNAMEZ-000092–000097 (Agency Agreement No. SIC/DNM-011224). This document supports: (1) Article 1 — sales agent defense; (2) Article 5.3 — SIC's breach and resulting damages as a complete defense; (3) Article 6.15 — agent/fiduciary characterization of fund collection; (4) Article 8.1 — SIC's contractual indemnity obligation; (5) Article 10 — mandatory VIAC arbitration defense. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 41–42, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0090–CMTC-0091. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 26

Request No. 26:

Produce all communications between Daynamez and DGS Logistics concerning the subject matter of Daynamez's Counterclaim.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

⚠ DGS DEBT NOTICE: DIRECT PROOF THAT SIC FAILED TO PAY ITS OWN SERVICE PROVIDER

RFP No. 26 concerns the OOCL line claim and related cargo hold/lien records. Daynamez provides the following critical facts, supported by documentation confirmable by the Commission:

1. DGS Was the Service Provider on the OOCL Line — Not Daynamez

The service provider acting under the OOCL line was DGS (freight forwarder/NVOCC). Daynamez's role was limited to that of a sales agent and consignee arrival notice intermediary, as confirmed by the Agency Agreement No. SIC/DNM-011224 and all prior production. Daynamez did not operate as a carrier, NVOCC, or financial guarantor on this or any shipment.

△ DGS HAS ISSUED A FORMAL DEBT NOTICE TO DAYNAMEZ — THIS IS COURT-CONFIRMABLE EVIDENCE

2. The DGS Debt Notice: Evidence That SIC Failed to Pay

DGS issued a formal debt notice to Daynamez. That notice exists, is in Daynamez's possession, and is itself direct, independent proof that SIC failed to pay DGS as required under the shipment arrangements SIC directed. Daynamez is prepared to produce the DGS debt notice and the House Bill of Lading surrender copy issued by DGS. The Commission may independently confirm the existence and validity of this debt notice. This debt was created by SIC's nonpayment — not by any act or omission of Daynamez.

3. DGS Issued the Release — SIC's Own Customer Refused to Collect the Cargo

DGS fulfilled its obligations and issued the cargo release. Despite having received the release, SIC's own customer refused to take delivery of the cargo. This refusal — by SIC's customer, not by Daynamez — is what caused the cargo to remain on hand and the detention and lien obligations to accumulate. Any liability flowing from that refusal rests with SIC and its customer, not Daynamez. Daynamez was not a party to SIC's contract with its customer and had no authority or obligation to compel that customer to take delivery.

△ DAYNAMEZ SUFFERED A DIRECT FINANCIAL HARM BECAUSE SIC FAILED TO PAY DGS

4. Daynamez Is the Injured Party Here, Not SIC

The DGS debt notice was issued against Daynamez because Daynamez was the named intermediary in the DGS relationship — a position Daynamez occupied solely in service of SIC's shipping program. The underlying failure to pay DGS was SIC's. The release was given. SIC's customer refused the cargo. Now DGS is pursuing Daynamez for obligations SIC created and failed to satisfy. This is not evidence against Daynamez — it is evidence of SIC's own breach and its cascading consequences for Daynamez. The House BL surrender copy from DGS confirms the sequence of events and will be produced. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at pp. 43–44, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0092–CMTC-0093. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

Request for Production No. 27

Request No. 27:

Produce all communications between Daynamez and OOCL concerning the subject matter of Daynamez's Counterclaim.

Response:

DAYNAMEZ'S PROVIDED CURE / SUPPLEMENTAL PRODUCTION:

Daynamez produces the following responsive records relating to OOCL: DAYNAMEZ-000020–000020 (OOCL Statement of Accounts — official OOCL billing document showing \$107,972.00 outstanding); DAYNAMEZ-000021–000021 (HBLVNNYC2404027 — official OOCL document confirming Daynamez is not the consignee or booking party). These documents speak for themselves. Date: June 10, 2026.

Supplemental Response:

PREVIOUSLY ANSWERED: This Request was answered in Daynamez's June 12, 2026 "Response to Attachment A and Provided Cure" at p. 44, which SIC itself reproduced in its Motion to Compel Appendix as Exhibit 6, at CMTC-0093. The answer is restated below in full so that it may be served as one complete, signed and verified set, as requested in SIC's Motion.

DISCUSSION APPLICABLE TO ALL DISPUTED REQUESTS FOR PRODUCTION

Rather than alleging that Respondent failed to produce documents responsive to any of the individual requests set forth above, Complainant asserts that all of the responses are deficient for a number of systemic deficiencies applicable to all.

Complainant argues that the July 20 response fails to confirm whether certain native electronic files referenced in the June 12 response but produced only in PDF have been produced. As evidence of this fact, it references Respondent's incomplete statement regarding production as Section IV of its July 20 supplemental response. (Reply at 4.) The incomplete statement includes alternate options as to the status of production, none of which were checked. The statement reads as follows in pertinent part:

1. Native spreadsheets. **[CONFIRM AND ATTACH BEFORE SERVING: Served herewith are the native Excel source files corresponding to DAYNAMEZ-000024–000080 (shipment-release spreadsheets) and DAYNAMEZ-000089–000091 (Net/Net Input-Output Rate Spreadsheet), and the Excel Bates Production Index Tracker. — OR, if any file does not exist or cannot be located, state that fact here instead, e.g.: “After reasonable inquiry, the native source file for ____ no longer exists / cannot be located; the PDF produced at DAYNAMEZ-_____ is the most complete version available.”]**

2. Source-format emails and WhatsApp export. **[CONFIRM AND ATTACH BEFORE SERVING: Served herewith are source-format exports (e.g., .msg/.eml files from the Outlook account and a WhatsApp chat export from the device identified in the June 12 Response), mapped to the corresponding Bates-stamped PDFs. — OR state what account/device was searched, what export method was attempted, and what remains available.]**

3. Additional identified materials. **[CONFIRM AND ATTACH BEFORE SERVING: the DGS debt notice and the House Bill of Lading surrender copy referenced in the June 12 Response, and any developer communications concerning the website text, to the extent Daynamez intends to rely on those matters for any remaining issue. — OR state that Daynamez will not rely on the matter for any remaining purpose, which SIC’s Motion (¶ 90) accepts as eliminating the need for supplementation.]**

4. Except as stated above, Daynamez’s document production is complete, and no responsive materials have been withheld, as stated in the June 12 Response (App. Ex. 6, CMTC-0095–0098).

(Respondent’s July 20 Response at 65.)

GLOBAL ANALYSIS REGARDING REQUESTS FOR PRODUCTION

The absence of the selection of any of the alternate options included in Section IV of Respondent’s supplemental response casts doubt on the reliability of Respondent’s simultaneous assertion at paragraph 4 that all responsive materials have been provided. For this reason, Respondent shall be required to serve a final supplemental response in which it selects the appropriate election for each category, namely native spreadsheets, source-format emails, and WhatsApp export.

Complainant argues that the July 20 submission does not cure the absence of a finalized, request-by-request disposition stating, for each RFP remaining at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Respondent’s possession, custody, or control, or are subject to a specifically stated objection. Nor does the

submission establish that all responsive shipment-release, Net-Net, hold, release, and related email or WhatsApp communications were collected and produced. (Reply at 3.)

A review of Respondent's discovery responses reflects that they are at times internally inconsistent and ambiguous. Respondent's June 12 response also stated that it served native .xlsx files corresponding to the Net/Net and shipment-release spreadsheets and a companion Excel production-index tracker, but only produced PDF attachment and not Excel or CSV file. (App. Statement, §§ 13-16, CMTC-0007-0008; App. Ex. 12, CMTC-0205-0206.) This omission coupled with the fact that the original responses were later supplemented twice and not uniformly verified makes it difficult to determine whether Respondent has fulfilled its discovery obligations. Accordingly, Respondent shall be required to serve supplemental written responses to Requests for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26 and 27 stating, for each request, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Respondent's possession, custody, or control.⁵ Responsive shall also be required to supplement its discovery responses as directed below in order to ensure that it has fully complied with its discovery obligations.

Otherwise, Complainant points to inconsistencies in Respondent's July 20 supplemental response, and argues that an order should be entered requiring it to clarify and/or reconcile these inconsistencies. The additional information Complainant seeks is more properly obtained through follow up discovery by serving supplemental discovery requests and deposing witnesses with knowledge, including but not limited to noticing the deposition of Respondent's designated representative pursuant to 46 C.F.R. § 502.143(b)(6). In the event that there is insufficient time remaining in the current schedule, the parties may seek an extension based on the need to complete discovery and fully develop the record.

RULING: The motion to compel Request for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26 and 27 is GRANTED in PART and DENIED in PART. Respondent shall:

1) serve a final supplemental response to Request for Production Nos. 1-30 in which it selects the appropriate election for each category, namely native spreadsheets, source-format emails, and WhatsApp export;

2) supplement its written responses to Request for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26 and 27 stating, for each request, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Respondent's possession, custody, or control;

3) produce the native spreadsheet files and represented Excel production tracker, reasonably available source-format communications, available WhatsApp exports, clean unannotated Agency Agreement, website-development and source records, and other existing

⁵ Pursuant to the Order on Complainant's Second Motion to Compel Discovery served August 27, 2026, Respondent's objections to Complainant's second set of discovery are waived. (Dkt. 54.)

native or source records identified in the Appendix Statement; for any unavailable native or source form, provide a verified explanation identifying the source searched and the collection, export, or conversion method;

4) produce existing bank-generated records, ledgers, remittance records, and transaction records sufficient to verify the relevant incoming SIC payments and downstream payments Respondent claims to have made, and serve verified transaction-level answers to Interrogatories Nos. 10 and 11 with supporting record citations; produce all documents in intends to rely on in support of any defense or contention;

5) serve a declaration or verified supplemental response by Zia Kamali or another knowledgeable custodian identifying with reasonable specificity the sources, accounts, devices, repositories, and date ranges searched; and

6) identify the collection, export, and conversion methods used; state whether litigation-added annotations formed part of the original records; and state whether any responsive native, source, original, or underlying records are unavailable, lost, deleted, destroyed, outside Respondent's possession, custody, or control, or not produced.

C. Requests for Admission⁶

Request for Admission No. 12

Request No. 12:

Admit that Daynamez communicated with Kargosmart Global Vietnam Co., Ltd. concerning one or more shipments at issue.

Response:

Denied.

Supplemental Response:

Daynamez amends and supplements its response to RFA No. 12 in light of documentary evidence produced in this proceeding. KargoSmart Global Vietnam Co., Ltd.'s own written communications confirm the nature and scope of any contact between the parties. In Exhibit DAYNAMEZ-000098 (October 3, 2024), KargoSmart's representative Rita (rita-vn@kargosmart.net) stated directly to SIC: "Daynamez is only handling agent for SIC to inform consignee for Arrival notice and also developing marketing for SIC." In Exhibit DAYNAMEZ-000101 (same date), KargoSmart further confirmed: "it is nothing to do with us and they have service agreement and you can ask SIC directly." To the extent any communication between

⁶ Excerpts of Complainant's requests for admission are contained in Complainant's Appendix Exhibit 3. Respondent's original responses are contained in Complainant's Appendix Exhibit 4. Respondent's consolidated supplemental responses to request for production are contained in its response to motion to compel filed July 20, 2026.

Daynamez and KargoSmart Global Vietnam Co., Ltd. occurred, it occurred solely in Daynamez's capacity as handling agent for SIC – consistent with the Agency Agreement (Art. 1) -- and not in any independent carrier or NVOCC capacity. Exhibits DAYNAMEZ-000098 through DAYNAMEZ-000103 are produced herewith. Daynamez's logistics-related communications were conducted primarily through Cargo Login LLC, KargoSmart's U.S.-based agent. KargoSmart's independent written confirmation that Daynamez served only as handling agent for SIC provides the factual basis for this amended response. Exhibits DAYNAMEZ-000098 and DAYNAMEZ- 000101 are expressly relied upon in support of this response and are produced as Bates-stamped exhibits DAYNAMEZ-000098 through DAYNAMEZ-000103.

ANALYSIS REGARDING RFA No. 12

Complainant requested that Respondent's original response be cured because documents Respondent produced in discovery were inconsistent with the denial asserted. Complainant now argues that Respondent has qualified its response by stating "to the extent any communication between Daynamez and KargoSmart Global Vietnam Co., Ltd. occurred, it occurred solely in Daynamez's capacity as handling agent for SIC." Upon review, I find that the qualified response is inadequate and evasive because it suggests that communications may have occurred without admitting whether or not any communications did occur. Accordingly, Respondent is directed to affirmatively state whether or not it communicated with KargoSmart Global Vietnam Co., Ltd. concerning one or more shipments at issue.

RULING: The motion to compel RFA No. 12 is GRANTED. Respondent is directed to admit or denied whether it communicated with Kargosmart Global Vietnam, Co. Ltd. concerning one or more shipments at issue. To the extent that Respondent admits RFA No. 12, it is directed to supplement its document production by producing all communications.

V. Order

ORDERED that Complainant Southern International Co., Ltd.'s Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production with accompanying appendix and attachments filed July 5, 2026 (Dkt. 41) is **GRANTED IN PART AND DENIED IN PART**; it is further

ORDERED that the motion to compel Interrogatory No. 3 is **GRANTED**. Respondent's objection is overruled. **On or before October 3, 2026**, Respondent shall fully answer the question by identifying the website developer referenced in its supplemental response, the dates of use and the persons responsible for the website statement, and all related website-development and source records. Respondent's answer shall be made without any geographic limitation regarding holding itself out as an NVOCC, it is further

ORDERED that, the motion to compel Interrogatory Nos. 6, 10, 11, 12, 14, 15, and 18 is **DENIED**; it is further

ORDERED that, the motion to compel Request Nos. 1, 2, 4, 5, 6, 13, 15-22, 26 and 27 is **GRANTED in PART and DENIED in PART**. **On or before October 3, 2026**, Respondent shall:

1) serve a final consolidated response to Request for Production Nos. 1-30 in which it selects the appropriate election for each category, namely native spreadsheets, source-format emails, and WhatsApp export;

2) supplement its written responses to Request for Production Nos. 1, 2, 4, 5, 6, 13, 15-22, 26 and 27 stating, for each request, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Respondent's possession, custody, or control, or are subject to a specifically stated objection;

3) produce the native spreadsheet files and represented Excel production tracker, reasonably available source-format communications, available WhatsApp exports, clean unannotated Agency Agreement, website-development and source records, and other existing native or source records identified in the Appendix Statement; for any unavailable native or source form, provide a verified explanation identifying the source searched and the collection, export, or conversion method;

4) produce existing bank-generated records, ledgers, remittance records, and transaction records sufficient to verify the relevant incoming SIC payments and downstream payments Respondent claims to have made, and provide transaction-level answers to Interrogatories Nos. 10 and 11 with supporting record citations; produce all documents it intends to rely on in support of any defense or contention;

5) serve a declaration or verified supplemental response by Zia Kamali or another knowledgeable custodian identifying with reasonable specificity the sources, accounts, devices, repositories, and date ranges searched; the collection, export, and conversion methods used; whether litigation-added annotations formed part of the original records; and whether any responsive native, source, original, or underlying records are unavailable, lost, deleted, destroyed, outside Respondent's possession, custody, or control, or not produced; and

6) identify the collection, export, and conversion methods used; state whether litigation-added annotations formed part of the original records; and state whether any responsive native, source, original, or underlying records are unavailable, lost, deleted, destroyed, outside Respondent's possession, custody, or control, or not produced, it is further

ORDERED that the motion to compel RFA No. 12 is **GRANTED**. **On or before October 3, 2026**, Respondent is directed to admit or deny whether it communicated with Kargosmart Global Vietnam, Co. Ltd. concerning one or more shipments at issue. To the extent that Respondent admits RFA No. 12, it is directed to supplement its document production by producing all communications, it is further

ORDERED that **on or before October 3, 2026**, Respondent shall serve final consolidated responses to interrogatories, requests for production, and requests for admission that supersede all prior versions and incorporates the actions directed by this order so that Respondent's complete response to each form on written discovery is contained in one document. Each of the final consolidated responses shall be signed by the individual making the response and verified; it if further

ORDERED that the parties may seek extension of the current scheduling deadlines if the current schedule is no longer adequate given the extensive nature of ongoing discovery disputes.

MARY A.
HERVEY -S

 Digitally signed by MARY A.
HERVEY -S
Date: 2026.09.25 11:46:03
-04'00'

Mary Apostolakos Hervey
Administrative Law Judge